No. 25-3727

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IN THE UNITED STATES COURT OF APPEALS
FOR THE NINTH CIRCUIT

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GAVIN NEWSOM, *et al.*,
Plaintiffs-Appellees,

v.

DONALD J. TRUMP, *et al.*,
Defendants-Appellants.

Gavin Newsom, *et al.*,
Plaintiffs-Appellees,

v.

Donald J. Trump, *et al.*,
Defendants-Appellants.

On Appeal from the United States District Court
for the Northern District of California
No. 3:25-cv-04870
The Honorable Charles R. Breyer

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D.C. No. 3:25-cv-04870, The Honorable Charles R. Breyer

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INTRODUCTION

On June 7, for the first time in our Nation's history, the President invoked 10 U.S.C. § 12406 to federalize a State's National Guard over the objections of the State's Governor. President Trump and Defense Secretary Hegseth transferred 4,000 members of California's National Guard—one in three of the Guard's total active members—to federal control to serve in a civilian law enforcement role on the streets of Los Angeles and other communities in Southern California. After the State and Governor Newsom brought suit to challenge that unprecedented action, the district court temporarily ordered the return of federalized troops to the State. The district court held that defendants' actions were likely unlawful and threatened to cause irreparable injury to both California and our Nation's democratic traditions. This Court, however, administratively stayed the district court's order and one week later issued a stay pending appeal.

Since that time, it has become clear that defendants' actions in Southern California earlier this summer were just the opening salvo in an effort to transform the role of the military in American society. President Trump and Secretary Hegseth have deployed thousands of soldiers to streets of Washington, D.C. for the purpose of civilian crime control. Plans are underway to do the same thing in Chicago. President Trump has also threatened to target New York, Oakland, and San Francisco with similar deployments. And a recent executive order directs Secretary Hegseth to ensure that

Secretary Hegseth to ensure that National Guard troops in all 50 States are ready to be deployed for civilian law enforcement purposes. Indeed, the order requires the Secretary to establish a new "standing National Guard quick reaction force" for rapid nationwide deployment. Exec. Order 14339, 90 Fed. Reg. 42121, 42122 (Aug. 25, 2025). At no prior point in our history has the President used the military this way: as his own personal police force, to be deployed for whatever law enforcement missions he deems appropriate. Addressing questions about the legality of this effort, the President recently stated: "I'm the President of the United States", "I have the right to do anything I want to do." White House, *President Trump Participates in a Cabinet Meeting*, YouTube, at 3:12:21-3:12:31 (Aug. 26, 2025), https://tinyurl.com/3knxk2vw.

In the face of that extraordinary threat, this Court should revisit the reasoning in its prior stay order. That order adopted a "highly deferential standard of review" (Stay Order 33) that will make it difficult for courts to meaningfully limit defendants' future reliance on Section 12406. The district court, by contrast, applied a more demanding standard—a standard consistent with the statute's text and history, as well as the serious threat posed by defendants' actions to our system of federalism, the separation of powers, and longstanding norms against "military intrusion into civilian affairs." *Laird v. Tatum*, 408 U.S. 1, 15 (1972). Because defendants have never provided an adequate justification under that standard, the district court's temporary restraining order should be affirmed.

Alternatively, the Court may wish to consider vacating and remanding the district court's order without reaching the merits. The Court has discretion to do so where, as here, the relevant factual circumstances have evolved in significant ways during the pendency of an appeal. If the Court takes that approach, it should also vacate its published stay order. Defendants should not be given the opportunity to invoke that

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JURISDICTION

The Court previously concluded that it has appellate jurisdiction. *See* Stay Order 16-18. In light of that determination, plaintiffs do not contest the jurisdictional statement in defendants' opening brief. *See* 9th Cir. R. 28-2.2.

STATEMENT

A. Legal Background

At the Constitutional Convention, "[t]he Framers heavily debated . . . whether the entire military power should be transferred to the national government." Leider, *The Modern Militia*, 2023 Mich. St. L. Rev. 893, 916 (2023). James Madison "advocated for full national control of the militia." *Id.* "Other delegates, however, fought Madison by stressing the importance" of state control. *Id.* at 917. Under the prevailing compromise, embodied in the Constitution's Militia Clauses,

the States retain control of the militia absent a valid federalization, pursuant to a statute enacted by Congress. *See* U.S. Const. art. I, § 8, cls. 15-16.

By vesting federalization authority "in the Congress, not the president," the Framers ensured that the President would not have unfettered power to call forth state militias for service at the federal level. Coakley, *The Role of Federal Military Forces in Domestic Disorders, 1789-1878*, at 14 (1988). Most everyone at the Convention dreaded a powerful standing army, and nearly as many feared a central, dominant Chief Executive. Vladeck, Note, *Emergency Power and the Militia Acts*, 114 Yale L.J. 149, 157 (2004). "The consensus thus clearly favored vesting the primary responsibility for responding to threats in the militias of the several states." *Id.* And "the federal government—through Congress, not the President—would exercise ultimate control." *Id.*

Today, the States retain primary responsibility over the militia—in modern terms, the National Guard. *See, e.g.*, Br. of Bipartisan Former Governors as Amici Curiae, C.A. Dkt. 49-1 at 9-12. But Congress has delegated limited statutory authority to the President to call the Guard into federal service. Section 12406 is one such statute.[1] Its earliest predecessor is the 1792 Militia Act. Under the 1792 Act, the President could call forth the militia in response to invasion or

justify the extraordinary step of deploying the military for civilian law enforcement

[1] A separate set of laws—known collectively as the Insurrection Act—also authorizes federalization in specified circumstances. *See* 10 U.S.C. §§ 251-255.

the regular forces to execute the laws." Given the considerable personnel and resources of federal civilian law enforcement agencies, it is implausible to think that "regular forces" were unavailable. Defendants have certainly not shown otherwise. Nor have defendants demonstrated that any obstacles to the execution of federal law on June 6-7 were substantial enough to justify the extraordinary step of deploying the military for civilian law enforcement purposes. Due respect for our system of federalism—and our longstanding tradition against intrusion of the military into civilian affairs—counsels strongly against adopting defendants' expansive construction of Section 12406.

In issuing a stay pending appeal, this Court applied a "highly deferential standard of review" and held that defendants likely had a "colorable basis" for invoking Section 12406. Stay Order 33. The Court should revisit that determination. Although interpretations of statutes offered by federal agencies and officials are sometimes entitled to an appropriate measure of deference from the judiciary, the federal government must at least make reasonable efforts to ground its interpretation in statutory text or history. Defendants have not done so. Their arguments about Section 12406 boil down to the assertion that some immigration agents in Los Angeles faced practical impediments to enforcing federal law on June 6-7. But Section 12406 requires far more: that the President is "unable with the regular forces" to execute the laws. Defendants have not made that showing,

ARGUMENT

I. THE COURT SHOULD AFFIRM THE DISTRICT COURT'S INJUNCTION

The district court correctly held that a temporary restraining order was necessary to block defendants from unlawfully federalizing thousands of members of California's

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I. THE COURT SHOULD AFFIRM THE DISTRICT COURT'S INJUNCTION

The district court correctly held that a temporary restraining order was necessary to block defendants from unlawfully federalizing thousands of members of California's National Guard. In its order staying that ruling, this Court held that "the district court's order is effectively a preliminary injunction." Stay Order 18. Preliminary injunctions are reviewed on appeal for abuse of discretion. *Sw. Voter Registration Educ. Project v. Shelley*, 344 F.3d 914, 918 (9th Cir. 2003) (en banc). The factors guiding that discretion are the plaintiffs' "likelihood of success," "irreparable harm," a "favorable balance of the equities," and the "public interest." *Wolford v. Lopez*, 116 F.4th 959, 976 (9th Cir. 2024). Although this Court evaluated those factors on a provisional basis earlier this summer, *see* Stay Order 18-41, the Court's stay order "is not binding here," *E. Bay Sanctuary Covenant v. Biden*, 993 F.3d 640, 660 (9th Cir. 2021). The Court should now revisit the reasoning of its prior order and affirm the district court.

A. Plaintiffs Have Shown a Likelihood of Success on the Merits

1. There Is No "Rebellion" or Other Basis for Federalizing the National Guard Under Section 12406

Exercising its power under the Militia Clauses, *see* U.S. Const. art. I, § 8, cls. 15-16, Congress has delegated limited authority to the President to federalize members of the National Guard. The only statute invoked by defendants here—Section 12406—requires a showing that "(1) the United States [has been] . . . invaded or is in danger of invasion by a foreign nation"; "(2) there is a rebellion or danger of a rebellion against the authority of the Government of the United States"; or "(3) the President is unable with the regular forces to execute the laws of the United States." Defendants do not rely on the first predicate and have not shown that either the second or third is satisfied. And

Section 12406 requires a showing that "(1) the United States [has been] invaded or is in danger of invasion by a foreign nation"; "(2) there is a rebellion or danger of a rebellion against the authority of the Government of the United States"; or "(3) the President is unable with the regular forces to execute the laws of the United States." Defendants do not rely on the first predicate and have not shown that either the second or third is satisfied. And neither deference nor nonjusticiability principles support reversal of the district court's injunction. *see* Opening Br. 26-30. But "definitions from the late 1800s and early 1900s—the relevant time period for understanding what Congress meant" when it enacted the language now in Section 12406 show that the term "rebellion" refers to "violent," "armed," "organized," "open and avowed" resistance to the lawful authority of the government, "often with an aim of overthrowing the government." ER-19-21. That understanding closely tracks the statute's history. It is not difficult to imagine what lawmakers had in mind when using that term

a. The Predicates for Invoking Section 12406 Are Not Satisfied

Rebellion or danger of a rebellion. Defendants attempt to defend the President's assertion in his June 7 Order that there was a "rebellion against the authority of the Government of the United States" in the Los Angeles region on June 6 and 7. ER-194; *see* Opening Br. 26-30. But "definitions from the late 1800s and early 1900s—the relevant time period for understanding what Congress meant" when it enacted the language now in Section 12406—show that the term rebellion refers to "violent," "armed," "organized," "open and avowed" resistance to the lawful authority of the government, "often with an aim of overthrowing the government." ER-19-21 (citing, *e.g.*, Webster's Int'l Dictionary of the English Language (1903)). That understanding closely tracks the statute's history. Congress first added "rebellion" to the Militia Act in 1861. *Supra* p. 5. It is not difficult to imagine what lawmakers had in mind when using that term

shortly after the Confederacy declared independence and the first shots were fired at Fort Sumter. *See generally Biden*, 143 S. Ct. at 2372; *see also* 597 U.S. at 804 (2022) ("historical context" can "confirm[] the plain import of [a statute's] text").

Under that definition, there was no rebellion or danger of rebellion when protests against federal immigration policies arose in the Los Angeles region on June 6 and 7. As the district court's factual findings show, "most protesters demonstrated peacefully." ER-21. Although "some individuals used the protests as an excuse for violence and destruction," *id.*, there was "no evidence of organized, as apart from sporadic or impromptu, violence," ER-21-22; *see also* ER-4-10. Because defendants make no effort to challenge those factual determinations, they are conclusive for purposes of this appeal.

Defendants argue, however, that the district court misconstrued the term "rebellion." *See, e.g.*, Opening Br. 26-27. Relying on secondary and tertiary dictionary definitions of the term, defendants assert that "rebellion" means any form of "[o]pen resistance or opposition to an authority or tradition" or "[d]isobedience of a legal command or summons." *Id.* at 26. But it is not remotely plausible to think that Congress intended to adopt those expansive definitions. As the district court explained, those definitions generally refer to rebellions of a "spiritual" or "familial" nature, ER-20 n.7—for example, when a parent says "my teenage son is going through a 'rebellion' or a 'rebellious' phase." It would not make sense to use "rebellion" that way in the context of a statute describing rebellion "against the authority of the Government of the United States." 10 U.S.C. § 12406. Congress plainly had in mind rebellions that are "political in nature." ER-20.

The far-reaching consequences of defendants' definition also make it an implausible understanding of congressional intent. *Cf. Bond v. United States*, 572 U.S. 844, 860 (2014) (refusing to adopt "boundless reading" of a statute in light of its "deeply serious consequences"). Construing "rebellion" to mean "open resistance or opposition to an authority or tradition" would threaten to make it trivially easy for the

text of Section 12406 "does not make the President the sole judge of whether one or more of the statutory preconditions exist." Stay Order 23.

Defendants also contend that *Martin*, 25 U.S. at 19, dictates that judicial review is unavailable here. Opening Br. 30-32. It does not. *Martin* long predates the modern political question doctrine. It arose under a different statute, the 1795 Militia Act. It concerned a question that directly implicated foreign policy—unlike this case, which "implicates the President's domestic use of military force." ER-17 (emphasis omitted). And the facts were not remotely comparable: the plaintiff was a militiaman who faced a court-martial for refusing President Madison's order to federal service during the War of 1812. *See Martin*, 25 U.S. at 20-22.

Both courts and scholars have construed *Martin* quite narrowly. In *Baker*, 369 U.S. at 213, the principal modern authority on justiciability under the political question doctrine, the Court understood *Martin* to establish the limited rule that courts will "refus[e] to review the political departments' determination of when or whether a war has ended." And far from there being any "settled understanding . . . among legal scholars" that *Martin* should be construed more expansively, Stay Order 28, a comprehensive academic assessment of *Martin* understands it to merely "reinforce" the settled principle that "officers, as well as the commander in chief, [may] issue orders" to subordinate members of the military "free from judicial interference." Kastenberg, *The Limits of Executive Power in Crisis in the*

CONCLUSION

The district court's temporary restraining order should be affirmed. Alternatively, the Court should vacate that order, as well as this Court's published stay order, and remand for further proceedings.

Dated: September 2, 2025

Respectfully submitted,

s/ Samuel T. Harbourt

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